

Court No. - 21

Case :- WRIT - C No. - 39954 of 2022

Petitioner :- Rameshwar Public School

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Prashant Mishra, Sarveshwari Prasad

Counsel for Respondent :- CSC

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Learned counsel for the petitioner is granted time to serve learned counsel representing respondent nos. 2, 3 and 4 within a week and file acknowledgement in the office so that matter is listed as a fresh case on 16.1.2023 showing the name of counsel for the respondents.

Order Date :- 6.1.2023

VMA

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Court No. - 21

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Counsel for Petitioner :- Prashant Mishra, Sarveshwari Prasad

Counsel for Respondent :- CSC

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

As prayed, put up as fresh tomorrow.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 16.1.2023

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Court No. - 21

Case :- WRIT - C No. - 39954 of 2022

Petitioner :- Rameshwar Public School

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Prashant Mishra, Sarveshwari Prasad

Counsel for Respondent :- CSC

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Learned counsel for the respondent-Corporation is granted time to ascertain whether any final assessment order is in existence or not and if it is in existence, place a copy of the same on record along with evidence to show how it was served on the petitioner.

List as fresh on 25.1.2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance to the citation.

Order Date :- 17.1.2023

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(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

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Counsel for Petitioner :- Prashant Mishra, Sarveshwari Prasad

Counsel for Respondent :- CSC

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Counsel for the petitioner shall ascertain the name of counsel on whom notice was served by him on behalf of respondent nos. 2, 3 and 4 and will intimate the office in writing about the same positively within three days so that name of the said counsel is printed in the cause list when the matter is listed next.

List as fresh on 1.2.2023.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.1.2023

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Court No. - 21

Case :- WRIT - C No. - 39954 of 2022

Petitioner :- Rameshwar Public School

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Prashant Mishra, Sarveshwari Prasad

Counsel for Respondent :- CSC

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The petitioner has prayed for quashing of the demand notice dated 24.09.2022 issued by respondent No. 4 in a case of alleged theft of electricity.

Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the respondent Corporation states the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Order Date :- 1.2.2023

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